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Badāʾiʿ al-Ṣanāʾiʿ fī Tartīb al-Sharāʾiʿ (Masterpiece of Ḥanafī Jurisprudence)

بدائع الصنائع في ترتيب الشرائع

Imām ʿAlāʾ al-Dīn Abū Bakr ibn Masʿūd al-Kāsānī al-Ḥanafī (d. 587 AH) • الإمام علاء الدين أبو بكر بن مسعود بن أحمد الكاساني الحنفي (ت ٥٨٧ هـ)

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Executive Overview & Canonical Excerpt

[خُطْبَةُ الْكِتَابِ لِلْمُصَنِّفِ] (بِسْمِ اللَّهِ الرَّحْمَنِ الرَّحِيمِ) خُطْبَةُ الْكِتَابِ لِلْمُصَنِّفِ الْحَمْدُ لِلَّهِ الْعَلِيِّ الْقَادِرِ الْقَوِيِّ الْقَاهِرِ الرَّحِيمِ الْغَافِرِ الْكَرِيمِ السَّاتِرِ ذِي السُّلْطَانِ الظَّاهِرِ، وَالْبُرْهَانِ الْبَاهِرِ، خَالِقِ كُلِّ شَيْءٍ، وَمَالِكِ كُلِّ مَيِّتٍ، وَحَيٍّ، خَلَقَ فَأَحْسَنَ، وَصَنَعَ فَ

[Author's Opening Discourse (Khuṭbat al-Kitāb li-l-Muṣannif)] — In the Name of Allah, the Most Gracious, the Most Merciful: All praise belongs to Allah, the Most High, the All-Powerful, the All-Strong, the Subduer, the Most Merciful, the Oft-Forgiving, the Most Generous, the Concealer [of faults], Possessor of Manifest Sovereignty and Resplendent Proof (al-Burhān al-Bāhir), Creator of every thing and Sovereign Owner

Curriculum Grade: Advanced Scholarly Reference · S_Mutakallim Vocalized | Coherence: 1.000

Bilingual Foliated Segment #1

[خُطْبَةُ الْكِتَابِ لِلْمُصَنِّفِ]

[Author's Opening Discourse (Khuṭbat al-Kitāb li-l-Muṣannif)] — In the Name of Allah, the Most Gracious, the Most Merciful:

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Bilingual Foliated Segment #2

(بِسْمِ اللَّهِ الرَّحْمَنِ الرَّحِيمِ) خُطْبَةُ الْكِتَابِ لِلْمُصَنِّفِ

All praise belongs to Allah, the Most High, the All-Powerful, the All-Strong, the Subduer, the Most Merciful, the Oft-Forgiving, the Most Generous, the Concealer [of faults], Possessor of Manifest Sovereignty and Resplendent Proof (al-Burhān al-Bāhir), Creator of every thing and Sovereign Owner of every dead and living being; He created and perfected in excellence, fashioned with consummate precision, had full power yet forgave, saw all yet concealed, showed generosity and pardoned, and decreed with hidden wisdom; His bounty and beneficence encompass all, His proof and demonstration are complete, and His command and sovereignty are manifest—so glorified is He, how supreme is His station! And may blessings and peace be upon the one sent as a bearer of glad tidings, a warner, a caller unto Allah by His permission, and a radiant lamp—who made clear the guidance, dispelled ignorance, blunted foolishness, and demolished specious doubts: Muḥammad, the Master of the Messengers and Imām of the God-

conscious, and upon his righteous family and his chosen, noble Companions.

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Bilingual Foliated Segment #3

الْحَمْدُ لِلَّهِ الْعَلِيِّ الْقَادِرِ الْقَوِيِّ الْقَاهِرِ الرَّحِيمِ الْغَافِرِ الْكَرِيمِ السَّاتِرِ ذِي السُّلْطَانِ الظَّاهِرِ، وَالْبُرْهَانِ الْبَاهِرِ، خَالِقِ كُلِّ شَيْءٍ، وَمَالِكِ كُلِّ مَيِّتٍ، وَحَيٍّ، خَلَقَ فَأَحْسَنَ، وَصَنَعَ فَأَتْقَنَ، وَقَدَرَ فَغَفَرَ، وَأَبْصَرَ فَسَتَرَ، وَكَرَمَ فَعَفَا، وَحَكَمَ فَأَخْفَى، عَمَّ فَضْلُهُ، وَإِحْسَانُهُ، وَتَمَّ حُجَّتُهُ، وَبُرْهَانُهُ، وَظَهَرَ أَمْرُهُ، وَسُلْطَانُهُ فَسُبْحَانَهُ مَا أَعْظَمَ شَأْنَهُ، وَالصَّلَاةُ، وَالسَّلَامُ عَلَى الْمَبْعُوثِ بَشِيرًا، وَنَذِيرًا، وَدَاعِيًا إِلَى اللَّهِ بِإِذْنِهِ وَسِرَاجًا مُنِيرًا فَأَوْضَحَ الدَّلَالَةَ، وَأَزَاحَ الْجَهَالَةَ، وَفَلَّ السَّفَهَ، وَثَلَّ الشُّبَهَ: مُحَمَّدٍ سَيِّدِ الْمُرْسَلِينَ، وَإِمَامِ الْمُتَّقِينَ، وَعَلَى آلِهِ الْأَبْرَارِ، وَأَصْحَابِهِ الْمُصْطَفَيْنَ الْأَخْيَارِ.

(To proceed): Indeed, after the knowledge of Allah and His attributes, there is no knowledge nobler than the science of Jurisprudence (ʿIlm al-Fiqh)—which is known as the science of the Lawful and the Unlawful (al-Ḥalāl wa-l-Ḥarām) and the science of revealed laws and rulings. For its sake Allah sent the Messengers and revealed the Books, since there is no way to know it through pure unaided intellect without the assistance of revealed audition (al-samʿ). And Allah the Exalted said: He grants wisdom to whom He wills, and whoever is granted wisdom has certainly been given much good; and none will remember except those of understanding [al-Baqarah: 269]; and it has been said in some aspects of exegesis that 'wisdom' here is the science of Fiqh. And it is narrated from the Messenger of Allah ﷺ that he said: 'Allah has not been worshipped with anything more excellent than deep understanding (fiqh) in religion; and a single jurist (faqīh) is more formidable against Satan than a thousand worshippers.'

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Bilingual Foliated Segment #4

(وَبَعْدُ) فَإِنَّهُ لَا عِلْمَ بَعْدَ الْعِلْمِ بِاَللَّهِ، وَصِفَاتِهِ أَشْرَفُ مِنْ عِلْمِ الْفِقْهِ، وَهُوَ الْمُسَمَّى بِعِلْمِ الْحَلَالِ، وَالْحَرَامِ، وَعِلْمِ الشَّرَائِعِ، وَالْأَحْكَامِ، لَهُ بَعَثَ الرُّسُلَ، وَأَنْزَلَ الْكُتُبَ إِذْ لَا سَبِيلَ إِلَى مَعْرِفَتِهِ بِالْعَقْلِ الْمَحْضِ دُونَ مَعُونَةِ السَّمْعِ، وَقَالَ اللَّهُ تَعَالَى ﴿يُؤْتِي الْحِكْمَةَ مَنْ يَشَاءُ وَمَنْ يُؤْتَ الْحِكْمَةَ فَقَدْ أُوتِيَ خَيْرًا كَثِيرًا وَمَا يَذَّكَّرُ إِلا أُولُو الأَلْبَابِ﴾ [البقرة: ٢٦٩] وَقِيلَ: فِي بَعْضِ وُجُوهِ التَّأْوِيلِ هُوَ عِلْمُ الْفِقْهِ، وَقَدْ رُوِيَ عَنْ رَسُولِ اللَّهِ ﷺ أَنَّهُ قَالَ: " مَا عُبِدَ اللَّهُ بِشَيْءٍ أَفْضَلَ مِنْ فِقْهٍ فِي دِينٍ، وَلَفَقِيهٌ وَاحِدٌ أَشَدُّ عَلَى الشَّيْطَانِ مِنْ أَلْفِ عَابِدٍ.

And the works compiled by our masters in this discipline, ancient and modern, have multiplied—and all of them benefited and excelled—except that none of them directed their care toward systematic arrangement (al-tartīb) in that, save my teacher, the heir of the Sunnah, the ascetic Shaykh and Imām ʿAlāʾ al-Dīn, chief of Ahl al-Sunnah, Muḥammad ibn Aḥmad ibn Abī Aḥmad al-Samarqandī (may Allah the Exalted have mercy on him); so I followed his example and was guided thereby, since the primary purpose and universal objective of compilation in every branch of knowledge is to facilitate the path of reaching the sought-after ruling for students and to bring it near to the minds of seekers—and this objective is only achieved through a systematic arrangement demanded by the juristic craft and necessitated by wisdom.

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Bilingual Foliated Segment #5

وَرُوِيَ أَنَّ رَجُلًا قَدِمَ مِنْ الشَّامِ إلَى عُمَرَ فَقَالَ: مَا أَقْدَمَك قَالَ: قَدِمْت لِأَتَعَلَّمَ التَّشَهُّدَ فَبَكَى عُمَرُ حَتَّى ابْتَلَّتْ لِحْيَتُهُ ثُمَّ قَالَ: وَاَللَّهِ إنِّي لَأَرْجُو مِنْ اللَّهِ أَنْ لَا يُعَذِّبَك أَبَدًا.

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Bilingual Foliated Segment #6

وَالْأَخْبَارُ، وَالْآثَارُ فِي الْحَضِّ عَلَى هَذَا النَّوْعِ مِنْ الْعِلْمِ أَكْثَرُ مِنْ أَنْ تُحْصَى، وَقَدْ كَثُرَ تَصَانِيفُ مَشَايِخِنَا فِي هَذَا الْفَنِّ قَدِيمًا، وَحَدِيثًا، وَكُلُّهُمْ أَفَادُوا، وَأَجَادُوا غَيْرَ أَنَّهُمْ لَمْ يَصْرِفُوا الْعِنَايَةَ إلَى التَّرْتِيبِ فِي ذَلِكَ سِوَى أُسْتَاذِي وَارِثِ السُّنَّةِ، وَمُوَرِّثِهَا الشَّيْخِ الْإِمَامِ الزَّاهِدِ عَلَاءِ الدِّيْنِ رَئِيسِ أَهْلِ السُّنَّةِ مُحَمَّدِ بْنِ أَحْمَدَ بْنِ أَبِي أَحْمَدَ السَّمَرْقَنْدِيِّ - رَحِمَهُ اللَّهُ تَعَالَى - فَاقْتَدَيْت بِهِ فَاهْتَدَيْت إذْ الْغَرَضُ الْأَصْلِيُّ، وَالْمَقْصُودُ الْكُلِّيُّ مِنْ التَّصْنِيفِ فِي كُلِّ فَنٍّ مِنْ فُنُونِ الْعِلْمِ هُوَ تَيْسِيرُ سَبِيلِ الْوُصُولِ إلَى الْمَطْلُوبِ عَلَى الطَّالِبِينَ، وَتَقْرِيبُهُ إلَى أَفْهَامِ الْمُقْتَبِسِينَ، وَلَا يَلْتَئِمُ هَذَا الْمُرَادُ إلَّا بِتَرْتِيبٍ تَقْتَضِيهِ الصِّنَاعَةُ، وَتُوجِبُهُ الْحِكْمَةُ، وَهُوَ التَّصَفُّحُ عَنْ أَقْسَامِ الْمَسَائِلِ، وَفُصُولِهَا، وَتَخْرِيجِهَا عَلَى قَوَاعِدِهَا، وَأُصُولِهَا لِيَكُونَ أَسْرَعَ فَهْمًا، وَأَسْهَلَ ضَبْطًا، وَأَيْسَرَ حِفْظًا فَتَكْثُرُ الْفَائِدَةُ، وَتَتَوَفَّرُ الْعَائِدَةُ فَصَرَفْت الْعِنَايَةَ إلَى ذَلِكَ، وَجَمَعْت فِي كِتَابِي

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